

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE OF PAGES 1 46	
2. AMENDMENT/MODIFICATION NO. 0001		3. EFFECTIVE DATE 02-Jul-2025		4. REQUISITION/PURCHASE REQ. NO.		5. PROJECT NO.(If applicable)	
6. ISSUED BY USACE, BALTIMORE DISTRICT 2 HOPKINS PLAZA BALTIMORE MD 21201		CODE W912DR		7. ADMINISTERED BY (If other than item 6) See Item 6		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (No., Street, County, State and Zip Code)				☒ X		9A. AMENDMENT OF SOLICITATION NO. W912DR25RA017	
				☒ X		9B. DATED (SEE ITEM 11) 06-Jun-2025	
						10A. MOD. OF CONTRACT/ORDER NO.	
						10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offer ☒ is extended, ☐ is not extended.							
Offer must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended by one of the following methods: (a) By completing Items 8 and 15, and returning <u>1</u> copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.							
A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.							
B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(B).							
C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:							
D. OTHER (Specify type of modification and authority)							
E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.) The purpose of this amendment is to provide a list of site-visit attendees, update wage determinations, include revisions in the Electrical SATOC Statement of Work, responses to all Projnet RFIs, include drawing package, and extending the proposal due date to 15 July 2025 by 11:00 AM. All other information remains unchanged. Please see Summary of Changes for further details.							
Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
				TEL: _____ EMAIL: _____			
15B. CONTRACTOR/OFFEROR		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA		16C. DATE SIGNED	
_____ (Signature of person authorized to sign)				BY _____ (Signature of Contracting Officer)		02-Jul-2025	

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

SECTION 00 10 00 - SOLICITATION

The required response date/time has changed from 08-Jul-2025 11:00 AM to 15-Jul-2025 11:00 AM.

The required performance has changed from Indefinite Delivery Indefinite Quantity (IDIQ), Single Award Task Order Contract (SATOC) for Electrical support for the Washington Aqueduct. The contract capacity is \$8,000,000.00. Competition will be limited to 8(a) certified firms who have offices within SBA's Region III which includes Delaware, Pennsylvania, Washington D.C., Virginia, and West Virginia. NAICS Code: 238210, Electrical Contractors and Other Wiring Installation Contractors. Size Standard: \$19,000,000.00 to Indefinite Delivery Indefinite Quantity (IDIQ), Single Award Task Order Contract (SATOC) for Electrical support for the Washington Aqueduct. The contract capacity is \$8,000,000.00. Competition will be limited to 8(a) certified firms who have offices within SBA's Region III which includes Delaware, Maryland, Pennsylvania, Virginia, West Virginia, and Washington D.C.. NAICS Code: 238210, Electrical Contractors and Other Wiring Installation Contractors. Size Standard: \$19,000,000.00.

The following have been modified:

IDIQ SATOC SOW

IDIQ SATOC SOW

Edits on 6/25/2025

BALTIMORE REGIONAL SINGLE AWARD TASK ORDER CONTRACT**1.0 GENERAL:**

1.0.1 Under this contract, the Contractor shall provide all management, plans, supervision, labor, equipment and materials necessary to perform design; construction; retrofitting or replacement related to electrical work under Construction or Design-Construct (Design/Build) negotiated Firm-Fixed-Price Task Orders (TO's). (For purposes of this base contract solicitation, the term Design/Construct and Design/Build are understood to be interchangeable and one in the same).

1.0.2 PLACE OF PERFORMANCE: The work will be performed for the United States Army Corps of Engineers (USACE) within the boundaries of the Baltimore District with the primary work performed at Washington Aqueduct, Washington, District of Columbia.

1.0.3 PERIOD OF PERFORMANCE: Any task orders issued underneath this contract shall be valid for a duration of 5-year. The start and end dates will be determined by the Contracting Officer.

1.0.4 Negotiated firm-fixed-priced Construction or Design-Construct Task Orders (TO's) will be awarded against the contract. The outcome is to provide the Government with cost effective rapid response for construction and/or dismantling, demolition or removal of electrical improvements relating, but not limited to all facets of construction including civil works. Projects may be fast-track design-build requiring appropriate design services to perform the construction efforts. The orders may include within them the requirement to perform preparation of Operations & Maintenance (O&M) Manuals; and for design-build task orders, the requirement to prepare specifications and drawings.

1.0.5 The work to be performed under this contract includes engineering and construction services for the repair or upgrade of electrical equipment within a complex water treatment plant that consists of, but not limited to, typical elements for repairs, rehabilitation, modification, upgrades and renovations of electrical systems in an industrial environment. Work is to be performed within the boundaries of the Baltimore District primarily at Washington Aqueduct facilities. Typical work may include but is not limited to repair and renovation of existing facilities of the following types: industrial, power distribution, pumping stations, water treatment process equipment, office and electrical infrastructure

such as motors, variable frequency drives, circuit breakers, switchgears, power protection relays, etc. Representative work examples may include SCADA improvements, power protection system upgrades, electrical distribution service improvements, electrical studies, arc flash safety assessments, coordination studies, generator upgrades, medium to low voltage distribution equipment upgrades, industrial electrical equipment maintenance and replacement, etc. Work may also include construction of new facilities. Representative work examples may include installation of new generators, variable frequency drives, motor control centers, transformers, etc. Work may be associated with both non-military and military construction.

1.0.6 All TO work shall be performed in compliance with the most current Federal, State and local regulatory requirements and the Contractor shall provide all required applications and/or permitting requirements in compliance with FAR 52.236-7 Permits and Responsibilities. (NOV 1991)

1.0.7 For those TO's that are Design/Build, the Contractor shall be required to provide a design that is certified by an electrical Professional Engineer (PE) having held a license and certifying designs for the last five (5) years. The approved designs will then be the basis for performing the construction portion of the design/build. The cost associated with the "design" will be negotiated as part of the TO's total price.

1.0.8 The Contractor shall prepare shop drawings/submittals as required under the submittal register and as-built drawings for each electrical TO.

1.0.9 The Contractor shall provide all management, supervision, quality control and safety oversight. Work associated with the electrical TO's may run consecutively or concurrently. The Contractor is required to provide the proper planning, scheduling, material procurement, and simultaneous management of multiple work crews at various locations. The Contractor must execute a flow of independent task orders and adjust his craft mix without impacting other Contractors or tenant operations. The

Contractor must effectively manage his subcontractors to insure that the government is provided a "seamless" level of effort on each task order. The Contractor shall provide a full-time superintendent and site safety and health officer. The role and cost will be negotiated on a task order by task order basis.

1.0.10 The Contractor shall provide the manpower and equipment to accept and unload all materials delivered to the sites for the electrical work under this contract. The government will not accept deliveries, nor will government equipment and manpower be used for material handling.

1.0.11 TO's issued under this contract will have a task order performance period. The time for completion of the work under the task order shall be stated therein. The Contractor is required to complete the task order work within the task order performance period or liquidated damages will be assessed. The period of performance shall include time for all activities from date of issuance of the task, including any ordering of materials and time required for final clean-up, inspection, acceptance and close out of the task order. The Contractor shall notify the Contracting Officer Representative (COR), in writing at least thirty (30) calendar days in advance of the date the work will be fully completed and ready for final inspection.

1.0.12 The Contractor's management/supervision shall interface with the Contracting Officer (KO) and/or the Contracting Officer's designee. The Contracting Officer Representative (COR) is responsible for the day to day Government/Contractor liaison, submittal review/approval, phased inspections, coordination with the tenant, payment requests approval etc.

1.0.13 Upon receipt of a Government executed task order, the Contractor shall:

1.0.13.0 Incorporate the task order into the progress schedule/report. The Contractor shall use the contract number and task order number for internal control. All proposals, schedules, vouchers, correspondence, etc., must cite the Government contract and task order number, as it is the Government's tracking mechanism.

1.0.14 Coordinate the start of work with the COR via attendance at a pre-construction conference, prior to the actual commencement of work.

1.0.14.0 In performance of work under this contract, the Contractor shall:

1.0.14.1 Conduct bi-weekly job site progress meetings.

1.0.14.2 Arrange with the COR a sequence of procedures, means of access, space for storage of materials and equipment, delivery of materials, use of approaches, corridors, and stairways. Since space for storage may be limited in work areas, the majority of storage may be outside or at the Contractor's assigned area. Only materials to be used for work under this contract may be stored at the assigned area.

1.0.14.3 Request, in writing, fourteen (14) calendar days in advance of any utility interruptions.

1.0.14.4 When working on a military installation, comply with all base requirements related, but not limited to security, safety, fire prevention/protection, radiation prevention/protection and utility interruption or use.

1.0.14.5 Delivery of materials and equipment shall be made with a minimum of interference with the installation staff.

1.0.14.6 The Contractor shall give advance notice of the date work will be fully completed and ready for final inspection. The Contractor shall notify the Contracting Officer's Representative, in writing, upon completion of each individual task order.

1.1 CONSTRUCTION TASK ORDER – GENERAL:

1.1.1 After a site visit to the task order location with the Government, the Contractor shall assist the Government to finalize the scope of work based on an existing design and/or a statement of need. This price will be based on work items as applicable. The Contractor's pre-task order scoping and proposal effort shall be considered a cost of doing business and shall not be paid for under any post task award line item.

1.1.2 Preparation of proposals by the Contractor shall not constitute an obligation by the Government to issue a task order for performance, nor is the request for proposal to be construed as the Contractor's authority to commence construction activity.

1.1.3 The **bare costs** of labor, material and equipment will be used.

1.2 DESIGN-BUILD TASK ORDER – GENERAL:

1.2.1 A portion of a design-build task order issued under this contract shall include design work that shall be negotiated. The Contractor and the government shall jointly finalize a task order scope of work (i.e. via site visits or project meetings) which will be used to establish sufficient clarity to generate a fixed-priced design and construction task order. This is a Task Order Construction Contract and no task orders will be issued for design services only.

1.2.2 Design costs shall be based on proposed professional man-hours that will be negotiated on each order as a separate element from the construction portion of the task order. Applicable disciplines, associated labor rates, overhead and profit will be applied as set in the base contract.

1.2.3 The value of the construction effort will be based on work items as discussed in section 1.1
CONSTRUCTION TASK ORDER – GENERAL

1.2.4 During the design effort, the design will be reviewed at multiple stages of development as defined in the design portion of the task order scope of work. The Contractor must design the project to be within the task order price. Should the designer's efforts, through no fault of government, result in exceeding the fixed price of the task order, the Government reserves the right to have the Contractor, at his own expense, revise (i.e. de-scope) the design to assure the product can be completed within the price of the task order. However, the government shall not direct the Contractor to construct a product for a price (as established under terms of this contract) that will exceed the task order price, without the revisions being further defined and a contract modification being issued.

1.2.5 For the design effort the Contractor will provide an estimate utilizing the design schedule (reference section 00010) for each design deliverable specified in the task order scope of work. The overhead and profit should be presented in a manner to allow clear understanding of the overhead and profit for the company providing the design/engineering services and the prime Contractors office overhead and profit related to the design phase of the project.

1.3 ORDERING PROCEDURES:

1.3.1 As the need exists for performance under the terms of this contract, the Contracting Officer or authorized representative shall notify the Contractor of an existing requirement.

1.3.2 Upon receipt of this notification, the Contractor shall respond to the needs of the Government by:

1.3.2.1 Visiting the proposed work site in the company of the Contracting Officer's Technical Representative or authorized representative, or

1.3.2.2 Establishing verbal agreement with the Contracting Officer's Representative or authorized representative to further define the scope of the requirement.

1.3.3 With the establishment of the scope of work of the individual project, the Contracting Officer, shall issue a "Request for Proposal" for the individual task order. Upon receipt of the Request for Proposal, the Contractor shall then submit a proposal (along with narrative to document the site investigation) for accomplishment of the task order utilizing EXCEL software or equivalent & submit in both paper & electronic medium. This proposal shall include a cover page which includes the date of proposal and contract, task order numbers, title, and location of task order with summary of proposed price.

1.3.3.1 A Technical Approach Narrative is to be submitted with each task order. This narrative should describe the contractor's approach/rationale to executing the task order and should be reflected in the pricing. This narrative shall include, but is not limited to, topics such as personnel/labor selection, intended work hours/shift work, phasing/sequencing, material and equipment selection, selection of manufacturer/subcontractor, etc.

1.3.3.2 Construction Task Orders:

1.3.3.2.1 Applicable estimating software, shall serve as the basis for establishing value of the work to be performed.

1.3.3.2.2 Work to be included in an individual requirement must be proposed by the Contractor using an acceptable proposal format to be agreed on between the Government and the Contractor at that time. **Any items exceeding \$2,500.00 must be supported by a minimum of three quotations from suppliers/installers.**

1.3.3.2.3 Upon receipt of a Request for Proposal for an individual task order, the Contractor shall be notified of the time schedule for submittal of a proposal

1.3.3.2.4 The Contractor shall notify the government within five working days of receipt of a Request for Proposal for an individual task order, if the Contractor cannot meet the aforementioned proposal due date or project schedule duration and must provide the reason(s) why. The Contractor shall also propose an alternate date/schedule, subject to the approval by the Government. The government reserves the right to unilaterally deny any extension.

1.3.3.2.5 The Contractor shall transmit proposals electronically, by means of computer disk or network connection, when so directed by the Government. Such electronic submissions shall be readable/writable using Microsoft Office, Professional Versions 2010 or later.

1.3.3.2.6 The Contractor shall use the Government work/task order number to identify all proposals, submittals, and other documents submitted to the Government.

1.3.3.2.7 The proposal shall be comprised of a "Detailed Estimate" with a breakdown to identify "individual line items", units of measure, quantities, labor, material, rental cost, and equipment summarized into a "bare cost" total for each subcontractor and for the prime Contractor separately; add the subtotal of the two and apply the city cost index (if not already applied) to arrive at the total direct and indirect subtotal; add taxes and subtotal. The sum of the two shall be submitted for the total proposal price.

1.3.4 The proposal submitted by the Contractor shall use the Construction Specification Institute (CSI) format. In the case of a proposal requiring a specialty subcontractor due to the highly technical nature of the work a "Detailed Estimate" approach shall be applied for that portion of the proposal. The proposal shall also be of sufficient detail to identify and quantify the use of all line items in detail compatible with the information contained within the solicitation scope of work. Upon receipt of the Contractor's proposal, the Government shall review the proposal for completeness, accuracy and reasonableness.

1.3.5 Preparation of proposals by the Contractor shall not constitute an obligation by the Government to award a task order, nor shall the Contractor proceed on the task order work until an award has been made. The government may accept the proposal as stated or negotiate any aspect of that proposal. The Government shall negotiate with the Contractor all items and any exceptions of the performance period required by the delivery schedule.

1.3.6 Construction TO's using a "Detailed Estimate approach, including specialty subcontract work as described above, will be developed using a Construction Specifications Institute (CSI) format and shall identify quantities and detail units and cost for labor, material and equipment. Supporting documentation that may include items such as competitive subcontractor quotations, vendor quotations, equipment price lists or other substantiation may be required as appropriate and is at the sole discretion of the Government. The TO price will be computed by using the total direct costs established by this. The proposal shall provide a (1) breakdown that shall include sufficient detail to permit an analysis of all costs for --(i) Material; (ii) Labor; (iii) Equipment; (iv) subcontracts; and (2)

shall cover all work involved in the TO. The Contractor is required to solicit, as a minimum, three bids/quotes on non-Mean priced work that is to be subcontracted.

1.3.7 The TO shall be of sufficient detail to identify and quantify all line items as noted herein.

1.3.7.1 Task Order proposal format for the work, shall reflect the CSI/ format and shall include:

1.3.7.1.1 Unit Line Items: Provide the Division Number/Title, Line Number, description, crew, productivity, unit **bare costs** (labor, material, equipment, and total). Quantities estimated along with the total **bare costs** for that quantity shall also be provided line item by line item. Any changes to these line items (as allowed by Appendix A) shall be highlighted. No other changes will be allowed. The rationale for these unit price changes shall be addressed in the narrative, which will be numerically "keyed" back to the line item. **Bare costs** will be subtotaled at the division, subdivision, and major line item levels, apply the applicable city cost index, and add taxes to arrive at a combined total cost.

1.3.7.1.2 "Square Foot"- commercial/Industrial/ Institutional Line Items: Provide the Assembly Number, assembly description, common additives, Quantities, Unit of Measure for each assembly, material/installation/total costs per unit. Quantities estimated along with the total assembly costs for that quantity shall also be provided line item by line item. Any changes to these assembly line items (as allowed by Appendix A) shall be highlighted. No other changes will be allowed. The rationale for the assembly cost changes shall be addressed in a narrative, which will be numerically "keyed" back to the line item. Assembly costs will be subtotaled at the division, subdivision, and major line items levels.

1.3.7.1.3 A brief description of the unit line item or system component of the assembly line item should be identified in the estimate format. To the extent practical** unit and total costs for labor, material and equipment should be identified in the estimate. A more detailed description, rationale for use, assumptions and cost backup information required to justify/document this negotiated line item shall be provided in the accompanying narrative. This narrative shall be keyed to the estimate.

1.3.7.1.4 If it is anticipated that "overtime" may be necessary to complete certain task orders. In such cases the unit "**bare labor**" costs for the affected line items may be adjusted for the loss of production efficiency as per the local labor agreements.

1.3.7.2 As all the work will be performed in a large geographical area, City Cost Indexes (CCI) will be utilized to determine applicable pricing. The indexes will be based on the rates applicable to the closest location to the project site. The CCI may be utilized using the weighted average or by individual division. Mixing the two methods is not acceptable. If done by Division, CCI number will be applied to each of the applicable sections as part of the proposals pricing.

All cost data used will be based on the "national average". Regional adjustments and the use of Davis Bacon rates should be considered in the proposed cost. No other adjustment will be made.

1.3.7.3 Highlight line items where "directed" brand name (s) material is used. Identification of specific brand name and explanation addressed in keyed narrative.

1.3.7.4 The proposal will be reviewed for completeness.

1.3.7.5 Once successfully negotiated, task orders will then be awarded by the Contracting Officer. Each task order shall include the following information:

- a) Date of the task order
- b) Contract number and task order number
- c) Commencement and task order performance data
- d) Accounting and appropriation data
- e) Any other pertinent data

1.3.7.6 Design-Build Task Orders :

1.3.7.6.1 A portion of a design-build task order issued under this contract shall include design work that shall be negotiated. The Contractor and the government shall jointly finalize a task order scope of work (i.e. via site visits or project meetings) which will be used to establish sufficient clarity to generate a fixed priced design and construction task order. This is a Task Order Construction Contract and no task orders will be issued for design services only.

1.3.7.6.2 Design costs shall be based on proposed professional man-hours that will be negotiated on each order as a separate element from the construction portion of the task order. Applicable disciplines, associated labor rates, overhead and profit will be applied as set in the base contract.

1.3.7.6.3 The value of the construction effort will be based on work items as discussed in section 1.1 CONSTRUCTION TASK ORDER – GENERAL

1.3.7.6.4 During the design effort, the design will be reviewed at multiple stages of development as defined in the design portion of the task order scope of work. The Contractor must design the project to be within the task order price. Should the designer's efforts, through no fault of government, result in exceeding the fixed price of the task order, the Government reserves the right to have the Contractor, at his own expense, revise (i.e. de-scope) the design to assure the product can be completed within the price of the task order. However, the government shall not direct the Contractor to construct a product for a price (as established under terms of this contract) that will exceed the task order price, without the revisions being further defined and a contract modification being issued.

1.3.7.6.5 For the design effort the Contractor will provide an estimate utilizing the design schedule (reference section 00010) for each design deliverable specified in the task order scope of work. The overhead and profit should be presented in a manner to allow clear understanding of the overhead and profit for the company providing the design/engineering services and the prime Contractors office overhead and profit related to the design phase of the project

1.3.7.6.6 Construction or Design-Build TO's using a "Detailed Estimate approach, including specialty subcontract work as described above, will be developed using a Construction Specifications Institute (CSI) format and shall identify quantities and detail units and cost for labor, material and equipment. Supporting documentation that may include items such as competitive Subcontractor quotations, vendor quotations, equipment price lists or other substantiation may be required as appropriate and is at the sole discretion of the Government. The TO price will be computed by using the total direct costs established by this method. The proposal shall provide a (1) breakdown that shall include sufficient detail to permit an analysis of all costs for --(i) Material; (ii) Labor; (iii) Equipment; (iv) Subcontracts; and (2) shall cover all work involved in the TO. The Contractor is required to

solicit, as a minimum, three bids/quotes on non-Mean priced work that is to be subcontracted.

1.4 UNIT LINE ITEMS:

1.4.1 The total bare costs of unit price line items (as may be modified - see below and Appendix A) establishes the total price (i.e. all direct & indirect costs, and profit) for the priced work.

1.4.2 The prime Contractor's direct costs will be negotiated based on actual labor rates and anticipated material costs, job conditions, expected productivity, etc. If the prime Contractor does not intend to selfperform the work, then the subcontractor's markup shall be incorporated into the direct costs.

1.4.3 BRAND NAME MATERIALS: If the Government directs the use of a specific brand name material and this material is compatible with the industry standard unit price classification, the Contractor may, at his option, use his negotiated material. This cost along with the **bare** labor and equipment cost (as may be modified- see Appendix A) will establish the bare total cost.

1.4.4 The **bare** unit labor/equipment rates are not affected by the Contractor's intent to self-perform and/or subcontract the work.

1.4.5 If the Government directs the use of a specific brand name material the material and labor cost will be negotiated.

1.4.6 At the discretion of the government, additional "**bare cost**" unit line item categories for work may be added to the existing data base for use in subsequent task orders. This line item shall not include "brand name" and/or proprietary equipment. Price will be negotiated using average material costs /productivity data and national average labor rates. These additional line item costs shall not include the prime Contractor's overhead and profit and will be as a unit line item. This price will be good for one year after finalization, and at the discretion of the Government, may be renegotiated yearly. This item shall be within the scope and general intent of the contract.

1.5 EMERGENCY ORDERING PROCEDURES:

1.5.1

On occasions when problems develop during other than normal duty hours and which jeopardize the operation of the Washington Aqueduct, the Contracting Officer or his Representative may contact the contractor to respond to the needs of the Government. With his bid for this contract the Contractor shall submit a proposal which included technical approach, organizational chart complete with the names, titles, phone numbers and cell numbers for this primary contact and two (2) alternate points of contact who all have the authority to initiate the mobilization for emergency work under this contract. The contractor shall submit names of crewmembers with job descriptions, level of experience, and the equipment to be used by each crew during emergency work. Each crew is expected to be a minimum of 2 members and anticipated number of crews is expected 1. The Contractor will respond within two (2) hours following telephonic notification and email backup, which may be made at any time in any twenty-four hour period.

1.5.2 The contractor shall, within four (4) hours (unless the contracting officer determined that additional time is required) following such notification, provide a proposal, for the scope of work provided. The time of commencement and completion shall be as specified by the government.

1.5.3 The proposal will be reviewed for completeness and any items negotiated.

1.5.4 The Contractor will not proceed with the agreed upon negotiated actions until written direction is provided by the Contracting Officer or his authorized representative.

1.5.5 A task order will subsequently be awarded.

1.6 PERFORMANCE OF TASK ORDERS:

1.6.1 Before any of the work under an individual task order will begin, the Contractor shall confer with the Contracting Officer's Representative and agree on a sequence of procedure of access to premises and building; space for storage of materials and equipment; delivery of materials and use of approaches, use of corridors; stairways; elevators; and similar means of communications and the location of partitions, eating spaces, and restrooms for the Contractor's employees.. Furniture and equipment in the immediate area will be moved by the Contractor and replaced to original position.

1.6.2 If approved by the Facility Manager, any temporary use of an existing elevator shall be by arrangement and subject to the control of the Government. Such use will be of an intermittent nature. The Contractor shall provide and maintain suitable and adequate protection covering for the elevator machinery, the hatchway entrance, and the interior of elevator during the period of temporary use. Loads in excess of the rated capability of the elevator will not be permitted. The government will bear the cost of electrical current for the operation of the elevator. On completion of the work, the Contractor shall remove the protective coverings together with any resultant dirt and debris, and leave the equipment in a condition equal to that prior to its initial use by the Contractor.

1.6.3 If the work required by the task order will not allow furniture and portable office equipment to be replaced to its original location, new locations will be designated by the COR for replacement by the Contractor.

1.6.4 Delivery of materials and equipment shall be made with a minimum of interference with the installation staff.

1.7 PROGRESS SCHEDULING AND REPORTING:

The Contractor shall within five days or as otherwise determined by the Contracting Officer, after date of notice to proceed, submit for approval a progress schedule showing the manner in which he intends to prosecute the work. The software used to generate the Project Schedule shall be shall be compatible with the programs used by the Government and maintained throughout the life of the contract. Schedules shall be submitted in Primavera P6 format. Other programs may be acceptable; however they require approval by the Contracting Officer prior to use. Scheduling software must be capable of producing an SDEF format file. The Critical Path Method (CPM) of network calculation shall be used to generate the Project Schedule. The requirements of the TO, shall provide the level of detail required for the Project Schedule. Procurement activities may be indicated on the schedule, and the schedule updated monthly.

1.8 PAYMENTS TO CONTRACTORS:

For payment purposes only, an allowance will be made by the Contracting Officer of 100 percent of the invoiced cost of materials or equipment delivered to the site but not incorporated into the construction, pursuant to the Contract Clause entitled "PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS". The Contracting Officer may also, at his/her discretion, take into consideration the cost of materials or equipment stored at locations other than the jobsite, when making progress payments under the contract. In order to be eligible for payment, the Contractor must provide satisfactory title evidence that he has acquired title to such material or equipment, and that it will be utilized on the work covered by this contract. Further, all items must be properly stored and protected. Earnings will be computed using 100% of invoiced value.

1.9 PHOTOGRAPHS: (SEP 85 REV JUN 1991)

The Contractor shall furnish digital color photographs of the project to the Contracting Officer. Photographs shall be in the quantities and the intervals required in the Task Order specifications.

1.10 WASHINGTON AQUEDUCT SPECIFIC JOB CONDITIONS:**1.10.1 CONTRACTOR SECURITY ACCESS:**

1.10.1.1 The Washington Aqueduct has been designated a Critical Infrastructure Facility under the National Critical Infrastructure Program which was outlined in *Presidential Decision Directive 63*. All Contractor and sub-contractor personnel must consent to a review of public records and screening of personal background information before access is granted to Government property. Failure to provide requested information may result in denial of access to facilities. No information will be released to outside agencies.

1.10.1.2 The following major types of adverse information may exclude a contractor, his employees, or sub-contractors from gaining access to Washington Aqueduct property. Each case will be reviewed on its own merit:

- a) Illegal use or abuse of drugs or alcohol, theft or dishonesty, unreliability, instability, use of force, violence and weapons related incidents that indicate a general disregard for the law.
- b) Aberrant, deviant sexual behavior or bizarre sexual conduct. Contributing to the delinquency of minors, child molestation, and/or rape. Records or testimony of employment, education or military service where the individual was involved in serious offenses or incidents that would reflect adversely on the honesty, integrity, trustworthiness, or stability of the individual.
- c) Excessive indebtedness, bad checks, financial difficulties or irresponsibility.
- d) Failing or refusing to sign the proper authorization documents to conduct the background screenings.
- e) Knowingly providing false information on Official Government Documents.
- f) Contractors must ensure that employees are legal residents of the United States and supply that proof.
- g) Involvement with known terrorists, terrorist organizations, terrorist-supporting financial organizations, subversive organizations or individuals who advocate violence or the violent overthrow of the US Government.

1.10.1.3 The Contractor shall maintain a current list of employees, to include trucking and delivery drivers, and coordinate with the Contracting Officer's Representative (COR) to ensure that the guards are furnished with a current list in order to allow for access to the site for the Contractor's personnel.

1.10.1.4 Vehicle Registration: The Contractor shall ensure that Contractor employees comply with vehicle registration requirements. The Contractor personnel entering Washington Aqueduct property and utilizing Contractor owned or privately owned vehicles on Washington Aqueduct shall possess a valid state driver's license and register vehicles with the Washington Aqueduct Visitor Access Control.

1.10.1.5 "Off Limits" Areas of Facilities: Certain buildings and real property parcels are "off limits" to the general public. The Contractor personnel shall not enter any "off limits" facilities without specific permission from the COR to do so. Other areas where the Contractor is authorized to enter must be locked except when entering or leaving the area. The Contractor shall ensure these areas are locked following entrance, remain locked while working within, and are re-locked upon egress. The Contractor shall provide their own sanitary facility.

1.10.2 ADDITIONAL SECURITY REQUIREMENTS:

1.10.2.1 Access and General Protection/Security Policy and Procedures: All contractor and all associated sub-contractors employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative). The contractor shall also provide all information required for background checks to meet installation/facility access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.2049, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any installation or facility change, the Government may require changes in contractor security matters or processes.

1.10.2.2 Suspicious Activity Reporting Training (e.g. iWATCH, Corps Watch, or See Something, Say Something): The contractor and all associated sub-contractors shall receive a brief/training (provided by the RA) on the local suspicious activity reporting program. This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the project manager, security representative or law enforcement entity. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 5 calendar days after the completion of the training.

1.10.2.3 Escorts in areas where they may be exposed to classified and/or sensitive materials and/or sensitive or restricted areas: All contract employees, including subcontractor employees who are not in possession of the appropriate security clearance or access privileges, will be escorted in areas where they may be exposed to classified and/or sensitive materials and/or sensitive or restricted areas.

1.10.2.4 Pre-screen candidates using E-Verify Program: The Contractor must pre-screen Candidates using the E-verify Program (<http://www.uscis.gov/e-verify>) website to meet the established employment eligibility requirements. The Vendor must ensure that the Candidate has two valid forms of Government issued identification prior to enrollment to ensure the correct information is entered into the E-verify system. An initial list of verified/eligible Candidates must be provided to the COR no later than 3 business days after the initial contract award.

1.11 MILITARY AND NON-MILITARY SPECIFIC JOB CONDITIONS:

1.11.1 CONTRACTOR SECURITY ACCESS:

1.11.1.1 Construction Vehicles shall be registered. Such Vehicles registered as specified below will be allowed to enter gate without being searched or as determined at the discretion of the gate guard.

1.11.1.2 All drivers registered, shall be licensed, and able to furnish two forms of photo identification.

1.11.1.3 Prime Contractor shall register all long-term employees at vehicle registration (location from gate guard).

1.11.1.4 Smaller vehicles such as personally owned vehicles and pickup trucks may enter by the front gate, but will be searched at each entry.

1.11.1.5 Unregistered subcontractors (e.g. short term Contractors) will be searched at each entry.

1.11.1.6 All of Contractor and subcontractors employees working on a Government facility must be American Citizens and be able to provide proof of citizenship with a Certificate of Birth and a valid picture driver's license. There will be no exceptions for this requirement.

1.11.1.7 All Contractor and subcontractor personnel must consent to a review of public records and screening of personal background information before access is granted to Washington Aqueduct. Failure to provide requested information may result in denial of access to facilities. No information will be released to outside agencies.

1.11.1.8 Prime Contractor shall contact the Contracting Officer or COR for additional information or questions on these procedures.

1.12 IDENTIFICATION OF EMPLOYEES:

Each employee assigned to this project by the Contractor and subcontractor shall be required to display at all times, while on the project site, an approved form of identification provided by the Contractor, as an authorized employee of the Contractor/subcontractor. In addition, on those projects where identification is prescribed and furnished by the Government, it shall be displayed as required and it shall immediately be returned to the Contracting Officer Representative for cancellation upon release of the assigned employee and or completion of project.

1.13 LAYOUT OF WORK:

The Contractor shall layout his work and shall be responsible for all measurements in connection therewith. The

Contractor shall furnish, at his own expense, all templates, platforms, equipment, tools and materials and labor as may be required in laying out any part of the work. The Contractor will be held responsible for the execution of the work to such lines and elevations shown on the drawings or indicated by the Contracting Officer.

1.14 UTILITIES:

1.14.1 AVAILABILITY OF UTILITIES INCLUDING LAVATORY FACILITIES:

1.14.1.1 It shall be the responsibility of the Contractor to provide all utilities he may require during the entire life of the contract. He shall make his own investigation and determinations as to the availability and adequacy of utilities for his use for renovation purposes. He shall install and maintain all necessary supply lines, connections, and meters if required, but only at such locations and in such manner as approved by the Contracting Officer. Before final acceptance of work under this contract, all temporary supply lines, connections installed by the Contractor shall be removed by him in a manner satisfactory to the Contracting Officer.

1.14.2 INTERRUPTION OF UTILITIES:

1.14.2.1 No utility services shall be interrupted by the Contractor to make connections, to relocate, or for any purpose without approval of the Contracting Officer. Existing system voltages are 13800 Volts, 4160 Volts, 2400 Volts, and less than 600 Volts,

1.14.2.2 Request for permission to shut down utility services shall be submitted in writing to the Contracting Officer not less than fourteen (14) days prior to proposed date of interruption. The request shall give the following information:

- a) Nature of Utility (Electric, Gas, L.P. or H.P., Water, Etc.);
- b) Size of line and location of shutoff;
- c) Buildings and services affected;
- d) Hours and date of shutoff; and
- e) Estimated length of time service will be interrupted;

1.14.2.3 Services will not be shut off until receipt of approval of the proposed hours and date from the Contracting Officer.

1.14.2.4 Shutoffs which will cause interruption of Government work operations as determined by the Contracting Officer shall be accomplished during regular non- work hours or on nonwork days of the Using Agency without any additional cost to the Government.

1.14.2.5 Operation of valves on water mains will be by Government personnel or as directed in the Government scope of work.

1.14.2.6 Where shut off water lines interrupt service to fire hydrants or fire sprinkler systems, the Contractor shall arrange his operations and have sufficient material and personnel available to complete the work without undue delay or to restore service without delay in event of emergency.

1.14.2.7 Flow in gas mains which have been shut off shall not be restored until the Government inspector has determined that all items serviced by the gas line have been shut off.

1.15 DISPOSAL OF EXISTING MATERIAL AND EQUIPMENT:

All removed, dismantled or demolished material and/or equipment including rubble, scrap and debris not specified or indicated to be Government salvaged, reinstalled under this contract or otherwise retained for disposal on the post will become the property of the Contractor and shall be promptly removed from the site and disposed of by the Contractor at his own expense and responsibility. All removed, dismantled or demolished material and/or equipment including rubble, scrap and debris that is considered to be hazardous e.g. asbestos containing material must be appropriately manifested and disposed of with a copy of the manifest and letter from the accepting landfill furnished to the installation.

1.16 COMPLIANCE WITH POST/BASE REGULATIONS:

All work completed on a military reservation or Government facility must be in compliance with all rules and regulations issued by the Commanding Officer covering general safety, security, radiation, sanitary requirements, pollution control, and traffic regulations and parking, shall be observed by the Contractor. Information regarding these requirements may be obtained by contacting the Contracting Officer Representative, who will provide such information or assist in obtaining same from appropriate authorities.

1.17 MAINTENANCE OF ACCESS:

Unless approved by the Contracting Officer, the Contractor shall not block passage through sidewalks, roads, or other entranceways to buildings during performance of work under this contract.

1.18 PROTECTION OF GOVERNMENT PROPERTY AND PERSONNEL:

1.18.1 Equipment Protection:

All existing non-Contractor owned material and equipment within the work area shall be protected by the Contractor from damage caused by construction operations.

1.18.2 Damaged Facilities:

All existing facilities damaged as a result of the construction activities shall be restored to a condition equivalent to that prior to the start of work. Materials used for replacement, repairing, patching, restoration, and similar type work shall match existing.

1.18.3 Personnel Protection:

The Contractor shall protect personnel by installing barricades as applicable to prevent injury from unauthorized entry into work areas. Warning signs shall be erected as necessary. Work shall proceed in such manner as to prevent the undue spread of dust. The contractor shall be responsible for equipping their crew with the appropriate personal protection gears (PPE) required for the necessary tasks. The Contracting Officer's Representative have the rights to stop any ongoing works if any inadequacies are noticed.

1.18.4 Additional Measures:

The Contractor shall take such additional measures as may be directed by the Contracting Officer to prevent damage or injury to non-Contractor property or personnel.

1.19 SUSPENSION OF OPERATIONS:

Government can direct suspension of operations of any portion of work, which the Contractor upon request does not correct. This suspension of operations may be the result of deficient work, non-compliance with environmental controls, violations of the approved confined space plan or any related safety hazard. Suspension of work will be communicated by letter, signed by the Contracting Officer.

1.20 ASBESTOS HANDLING AND REMOVAL:

Unless stated otherwise in individual task orders, it should be assumed that through site investigations, friable asbestos containing material has not been found, however if asbestos containing material is encountered, its testing, removal and disposal is covered in the "CHANGES" clause of the Contract Clauses and subject to Equitable Adjustment as outlined therein.

1.21 TIME EXTENSIONS FOR UNUSUALLY SEVERE WEATHER:**1.21.1 Procedure for Determination:**

1.21.1.1 This provision specifies the procedure for determination of time extensions for unusually severe weather in accordance the contract clause, FAR 52.249-10 entitled "Default: (Fixed Price Construction)". In order for the Contracting Officer to award a time extension under this clause, the following conditions must be satisfied:

- a) The weather experienced at the project site during the contract period must be found to be unusually severe, that is, more severe than the adverse weather anticipated for the project location during any given month.
- b) The unusually severe weather must actually cause a delay to the completion of the project. The delay must be beyond the control and without the fault or negligence of the Contractor.

1.21.2 Anticipated Adverse Weather Delays:

The schedule of monthly anticipated adverse weather delays is based on National Oceanic and

Atmospheric Administration (NOAA) or similar data for the project location and will constitute the base line for monthly weather time evaluations. The Contractor's progress schedule must reflect these anticipated adverse weather delays in all-weather dependent activities. Monthly Anticipated Adverse Weather Delays will be specified in the Task Order as appropriate.

1.21.3 Impact:

Upon the award of the contract and continuing throughout the contract, the will record on the daily CQC report, the occurrence of adverse weather and resultant impact to normally scheduled work. Actual adverse weather delay days must prevent work on critical activities for fifty (50) percent or more of the Contractor's scheduled work day. The number of actual adverse weather delay days shall include days impacted by actual adverse weather (even if adverse weather occurred in previous month), be calculated chronologically from the first to the last day of each month, and be recorded as full days. If the number of actual adverse weather delay days exceeds the number of days anticipated in paragraph "Anticipated Adverse Weather Delays", above, the Contracting Officer will convert any qualifying delays to calendar days, giving full consideration for equivalent fair weather work days, and issue a modification in accordance with the contract clause, FAR 52.249-10, entitled "Default (Fixed Price Construction)".

1.22 WORKING HOURS:

Work hours shall be determined on a per Task Order basis. It shall be the Contractors responsibility to obtain advance approval (from the Contracting Officer) for working hours other than the normal five (5) day work week from 7:00 am to 3:30 pm.

1.23 SAFETY:

1.23.1 U.S. ARMY CORPS OF ENGINEERS, EM 385-1-1 (30 November 2014) Safety and Health Requirements Manual):

1.23.1.1 The publication listed below form a part of this specification and are referred to in the text by the basic designation only. All interim changes (changes made between publications of new editions) to the U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1, will be posted on the Headquarters Website. The date that it is posted shall become the official effective date of the change and contracts awarded after this date shall require complying accordingly. The website location where these changes can be found is under the button entitled "Changes to EM", located at:

<http://www.usace.army.mil/SafetyandOccupationalHealth.aspx>

1.23.1.2 GENERAL:

1.23.1.2.1 All work shall be accomplished within full compliance to the US Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1 and/or other applicable Federal, State, and Local safety regulations. Where there are two interpretations or conflicts the stricter standard will apply.

1.23.1.2.2 Worker safety is of paramount importance. The Contractor shall comply with the Contract Clause in the Solicitation entitled ACCIDENT PREVENTION (FAR 52.236-13), including the U.S. Army Corps of Engineers Safety and Health Requirements Manual referred to therein in addition to the provisions of this specification.

1.23.2 SAFETY PROGRAM:

1.23.2.1 The U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1- 1, and all subsequent revisions referred to in the Contract Clause ACCIDENT PREVENTION of this contract, are hereby supplemented as follows:

1.23.2.1.1 The Contractor shall designate an employee with the appropriate education, experience and training who is responsible for overall supervision of accident prevention activities. Such duties shall include:

1.23.2.1.1.1 Assuring applicable safety requirements are;

a) Communicated to the workers in a language they understand (reference EM 385-1-1, 15 September 2008, 01.A.04). It is the Contractor's responsibility to ascertain if there are workers on the job who do not speak and/or understand the English language. If such workers are employed by the prime Contractor or subcontractors, at any tier, it is the prime Contractor's responsibility to ensure that all safety programs, signs, and tool box meetings are communicated to the workers in a language they understand, and that a bilingual employee is on site at all times. If the Contractor contends that interpreters and/or bilingual signs are not required, a language certificate must be provided which verifies that all workers (whose native tongue is other than English) have a command of the English language sufficient to understand all direction, training and safety requirements, whether written or oral, and incorporated in work methods, and

b) Inspecting the work to ensure that safety measures and instructions are actually applied. The proposed site safety and health officer's name and qualifications shall be submitted in writing for approval to the Contracting Officer's Representative. This individual must have the appropriate level of prior experience and training as a site safety officer or engineer and be able to demonstrate his/her familiarity and understanding of the safety requirements over a prescribed trial period in accordance with EM 385-1-1 10.A.17. The site safety and health officer shall have the authority to act on behalf of the Contractor's general management to take whatever action is necessary to assure compliance with safety requirements. The safety supervisor is required to be on the site when work is being performed. The safety supervisor's costs, roles and responsibilities will be negotiated on a task order by task order basis.

1.23.2.1.1.2 Prior to commencement of any work at a job site, a pre-construction safety meeting shall be held between the Contractor and the Corps of Engineers Area/Resident Engineer to discuss the Contractor's safety program and in particular to review the following submittals:

1.23.2.1.1.2.1 Contractor's Accident Prevention Plan: An acceptable accident prevention plan, written by the prime Contractor for the specific work and implementing in detail the pertinent requirements of Appendix A of EM 385-1-1, shall be submitted for Government approval.

1.23.2.1.1.2.2 Activity Hazard Analysis: Prior to beginning each definable feature of work, an activity hazard analysis (AHA) shall be prepared by the Contractor for that feature of work and submitted to the Contracting Officer's Representative for approval. A feature of work is defined as an operation involving a type of work presenting hazards not experienced in previous

operations or where a new subcontractor or work crew is to perform work. The analysis shall address the hazards for each activity performed in the phase and shall present the procedures and safeguards necessary to eliminate the hazards or reduce the risk to an acceptable level. The AHA must be developed in accordance with Section 01.A.13 of EM 385-1-1.

1.23.2.1.1.3 Subsequent jobsite safety meetings shall be held as follows:

1.23.2.1.1.3.1 A safety meeting shall be held at least once a month for all supervisors on the project to review past activities, to plan ahead for new or changed operations and to establish safe working procedures to anticipated hazards. An outline report of each monthly meeting shall be submitted to the Contracting Officer's Representative.

1.23.2.1.1.3.2 At least one safety meeting shall be conducted weekly, or whenever new crews begin work, by the appropriate field supervisors or foremen for all workers. An outline report of the meeting giving date, time, attendance, subjects discussed and who conducted it shall be maintained and copies furnished with the daily quality control report.

1.22.3 ACCIDENTS:

1.22.3.1 All reportable and recordable accidents are to be investigated by both the Contractor and, where appropriate, the subcontractor.

1.22.3.2 Accident Reporting, Eng Form 3394:

1.22.3.2.1 Section 1, Paragraph 01.D, of EM 385-1-1 and the Contract Clause entitled ACCIDENT PREVENTION (FAR 52.236-13) are amended as follows: The prime Contractor shall report on Eng Form 3394, supplied by the Contracting Officer, all injuries to his employees or subcontractors that result in treatment by a medical professional and/or lost time and all damage to property and/or equipment in excess of \$2,000 per incident. Verbal notification of such accident shall be made to the Government Designated Authority immediately. A written report on the above noted form shall be submitted to the Contracting Officer within 24 hours following such accidents. The written report shall include the following:

1.22.3.2.1.1 A description of the circumstances leading up to the accident, the cause of the accident, and corrective measures taken to prevent recurrence.

1.22.3.2.1.2 A description of the injury and name and location of the medical facility giving examination and treatment.

1.22.3.2.1.3 A statement as to whether or not the employee was permitted to return to work after examination and treatment by the doctor, and if not, an estimate or statement of the number of days lost from work. If there have been days lost from work, state whether or not the employee has been re-examined and declared fit to resume work as of the date of the report.

1.22.4 OSHA Requirements:

1.22.4.1 OSHA Form 300 Log: A copy of the Contractor's OSHA 300 Log of Injuries shall be forwarded monthly to the Government Designated Authority.

1.22.4.2 OSHA Inspections: Contractors shall immediately notify the Contracting Officer when an OSHA Compliance official (Federal or State representative) presents his/her credentials and informs the Contractor that the workplace will be inspected for OSHA compliance. Contractors shall also notify the Contracting Officer upon determination that an exit interview will take place upon completion of the OSHA inspection. (NABSA OCT 05, 1976)

1.23 CONTRACTOR QUALITY CONTROL:

1.23.1 GENERAL

1.23.1.1 The Contractor shall provide and maintain an effective quality control program that complies with the Contract Clause entitled "Inspection of Construction." The Contractor's Quality Control Program through inspection and reporting shall demonstrate and document the extent of compliance of all work with the standards and quality established by the contract documents. The burden of proof of contract compliance is placed on the Contractor and not assumed by the Government. The Contractor's Quality Control will not be accepted without question. The Contractor's Quality Control program shall include daily inspections and provide for a daily report of CQC activity.

1.23.2 CONTROL

1.23.2.1 Contractor Quality Control is the means by which the Contractor ensures that the construction, to include that of subcontractors and suppliers, complies with the requirements of the contract. At least three phases of control shall be conducted by the CQC System Manager for each definable feature of work as follows:

1.23.2.1.1 Preparatory Phase

1.23.2.1.1.1 This phase shall be performed prior to beginning work on each definable feature of work; after all required plans/documents/materials are approved/accepted, and after copies are at the work site. This phase shall include:

1.23.2.1.1.1.1 A review of each paragraph of applicable specifications, reference codes, and standards. A copy of those sections of referenced codes and standards applicable to that portion of the work to be accomplished in the field shall be made available by the Contractor at the preparatory inspection. These copies shall be maintained in the field and available for use by Government personnel until final acceptance of the work.

1.23.2.1.1.1.2 A review of applicable contract drawings, if any.

1.23.2.1.1.1.3 A checklist to assure that all materials and/or equipment have been tested, submitted, and approved.

1.23.2.1.1.1.4 Review of provisions that have been made to provide required control inspection and testing.

1.23.2.1.1.1.5 Examination of the work area to assure that all required preliminary work has been completed and is in compliance with the contract.

1.23.2.1.1.1.6 A physical examination of required materials, equipment, and sample work to assure that they are on hand, conform to approved shop drawings or submitted data, and are properly stored.

1.23.2.1.1.1.7 A review of the appropriate activity hazard analysis to assure safety requirements are met.

1.23.2.1.1.1.8 Discussion of procedures for controlling quality of the work including repetitive deficiencies and, document construction tolerances and workmanship standards for that feature of work.

1.23.2.1.1.1.9 An examination to ensure that the portion of the plan for the work to be performed has been accepted by the Contracting Officer.

1.23.2.1.1.1.10 The Government shall be notified at least twentyfour (24) hours in advance of beginning the preparatory control phase. This phase shall include a meeting conducted by the CQC System Manager and attended by the superintendent, other CQC personnel (as applicable), and the foreman responsible for the definable feature. The results of the preparatory phase actions shall be documented by separate minutes prepared by the CQC System Manager and attached to the daily CQC report. The Contractor shall instruct applicable workers as to the acceptable level of workmanship required in order to meet contract specifications.

1.23.2.2 Initial Phase

1.23.2.2.1 This phase shall be accomplished at the beginning of a definable feature of work. The following shall be accomplished:

1.23.2.2.1.1 An examination of work to ensure that it is in full compliance with contract requirements. Review minutes of the preparatory meeting.

1.23.2.2.1.2 Verify adequacy of controls to ensure full contract compliance. Verify required control inspection and testing.

1.23.2.2.1.3 Establish level of workmanship and verify that it meets minimum acceptable workmanship standards. Compare with required sample panels as appropriate.

1.23.2.2.1.4 Resolve all differences.

1.23.2.2.1.5 Examine safety to include compliance with and upgrading of the safety plan and activity hazard analysis. Review the activity hazard analysis with each worker.

1.23.2.2.1.6 The Government shall be notified at least twenty-four (24) hours in advance of beginning the initial phase. Separate minutes of this phase shall be prepared by the CQC System Manager and attached to the daily CQC report. Exact location of initial phase shall be indicated for future reference and comparison with follow-up phases.

1.23.2.2.1.7 The initial phase should be repeated for each new crew to work onsite, or any time acceptable specified quality standards are not being met.

1.23.2.3 Follow-Up Phase

Daily checks shall be performed to assure control activities, including control testing, are providing continued compliance with contract requirements, until completion of the particular feature of work. The checks shall be made a matter of record in the CQC documentation. Final follow-up checks shall be conducted and all deficiencies corrected prior to the start of additional features of work which may be affected by the deficient work. The Contractor shall not build upon nor conceal non-conforming work.

1.23.2.4 Additional Preparatory and Initial Phases

Additional preparatory and initial phases shall be conducted on the same definable features of work if: the quality or safety of on-going work is unacceptable; if there are changes in the applicable CQC staff, onsite production supervision or work crew; if work on a definable feature is resumed after a substantial period of inactivity; or if other problems develop.

1.23.3 CONTRACTOR QUALITY CONTROL PLAN:

1.23.3.1 Not later than fourteen (14) days after the Task Order is awarded, the Contractor shall submit to the Contracting Officer for approval a Contractor Quality Control (CQC) Plan showing proposed implementation of the requirements of the Contract Clause titled "Inspection of Construction." The plan shall identify personnel, procedures, control, instructions, test, records, and forms to be used. Construction will be permitted to begin only after acceptance of the CQC Plan.

1.23.4 CQC System Manager

1.23.4.1 The Contractor shall identify as CQC System Manager an individual within the onsite work organization who shall be responsible for overall management of CQC and have the authority to act in all CQC matters for the Contractor. The CQC System Manager shall be a construction person with a minimum of ten (10) years in related work. The CQC System Manager shall have completed the course entitled "Construction Quality Management for Contractors" within forty-five (45) calendar days after contract award. Costs associated with this course shall be borne by the Contractor. Further information on the course is available from the Contracting Officer and will be provided upon request. The CQC System Manager shall be on the site at all times during construction and shall be employed by the prime Contractor. The CQC System Manager may be assigned other duties in addition to CQC System Manager but must allow sufficient time on a daily basis to complete CQC System Manager responsibilities. An alternate for the CQC System Manager shall be identified in the plan to serve in the event of the System Manager's absence. The requirements for the alternate shall be the same as for the designated CQC System Manager.

1.23.4.2 ADDITIONAL REQUIREMENTS FOR CONSTRUCTION MANAGEMENT

1.23.5 Documentation

1.23.5.1 The Contractor shall maintain current records providing factual evidence that required quality control activities and/or tests have been performed. These records shall include the work of subcontractors and suppliers and shall be on an acceptable form that includes, as a minimum, the following information:

1.23.5.1.1 Contractor/subcontractor and their area of responsibility.

1.23.5.1.2 Operating plant/equipment with hours worked, idle, or down for repair.

1.23.5.1.3 Work performed each day, giving location, description, and by whom.

1.23.5.1.4 Test and/or control activities performed with results and references to specifications/drawings requirements. The control phase shall be identified reparatory, initial, and follow-up. List deficiencies noted along with corrective action.

1.23.5.1.5 Quantity of materials received at the site with statement as to acceptability, storage, and reference to specifications/drawings requirements.

1.23.5.1.6 Submittals and deliverables reviewed, with contract reference, by whom, and action taken.

1.23.5.1.7 Off-site surveillance activities, including actions taken.

1.23.5.1.8 Job safety evaluations stating what was checked, results, and instructions for corrective actions.

1.23.5.1.9 Instructions given/received and conflicts in plans and/or specifications.

1.23.5.1.10 Contractor's verification statement. These records shall indicate a description of trades working on the project; the number of personnel working; weather conditions encountered; and any delays encountered. These records shall cover both conforming and deficient features and shall include a statement that equipment and materials incorporated in the work and workmanship comply with the contract. The original and one copy of these records in report form shall be furnished to the Government daily within twenty-four (24) hours after the date covered by the report, except that reports need not be submitted for days on which no work is performed. As a minimum, one report shall be prepared and submitted for every seven (7) days of no work and on the last day of a no work period. All calendar days shall be accounted for throughout the life of the contract. The first report following a day of no work shall be for that day only. Reports shall be signed and dated by the CQC System Manager. The report from the CQC System Manager shall include copies of test reports and copies of reports prepared by all subordinate quality control personnel.

1.23.6 WORK DEFICIENCIES

1.23.6.1 The Contractor shall not build upon or conceal non-conforming work. If deficiencies indicate that the Contractor's Quality Control or safety is not adequate or does not produce the desired results, corrective actions shall be taken by the Contractor. If the Contractor does not promptly make the necessary corrections, the Contracting Officer may issue an order stopping all or any part of the work until satisfactory corrective action has been taken. No payment will be provided for deficient work. Payment can only be made when Government acceptance of the invoiced work is provided. If recurring deficiencies in an item or items

indicated that the quality control is not adequate, such corrective actions shall be taken as directed by the Contracting Officer.

1.24 QUALITY CONTROL SYSTEM (QCS):

1.24.1 GENERAL

1.24.1.1 The Government will use the Resident Management System for Windows (RMS) to assist in its monitoring and administration of this contract. The Contractor shall use the Government- furnished Construction Contractor Module of RMS, referred to as QCS, to record, maintain, and submit various information throughout the contract period. The Contractor module, user manuals, updates, and training information can be downloaded from the RMS web site. This joint Government-Contractor use of RMS and QCS will facilitate electronic exchange of information and overall management of the contract. QCS provides the means for the Contractor to input, track, and electronically share information with the Government in the following areas:

- Administration
- Finances
- Quality Control
- Safety
- Submittal Monitoring Scheduling
- Import/Export of Data

1.24.1.2 Correspondence and Electronic Communications

For ease and speed of communications, both Government and Contractor will, to the maximum extent feasible, exchange correspondence and other documents in electronic format. Correspondence, pay requests and other documents comprising the official contract record shall also be provided in paper format, with signatures and dates where necessary. Paper documents will govern, in the event of discrepancy with the electronic version.

1.24.2 QCS SOFTWARE

QCS is a Windows-based program that can be run on a stand-alone personal computer or on a network. The Government will make available the QCS software to the Contractor after award of the construction contract. Prior to the Pre-Construction Conference, the Contractor shall be responsible to download, install and use the latest version of the QCS software from the Government's RMS Internet Website (<http://winrms.usace.army.mil>). Any program updates of QCS will be made available to the Contractor via the Government RMS Website as they become available.

1.24.3 SYSTEM REQUIREMENTS

The following listed hardware and software is the minimum system configuration that the Contractor shall have to run QCS:

Hardware

System meeting the requirements necessary to run QCS, Micro-station, AutoCAD, etc.

Software

Microsoft Office, 2007 or newer, Internet access, Electronic mail (E-mail), MAPI compatible, Virus protection software that is regularly upgraded with all issued manufacturer's updates.

1.24.4 RELATED INFORMATION:

Contractor Quality Control (CQC) Training: The use of QCS will be discussed with the Contractor's QC System Manager during the mandatory CQC Training class.

1.24.5 CONTRACT DATABASE

Prior to the pre-construction conference, the Government shall provide the Contractor with basic contract award data to use for QCS. The Government will provide data updates to the Contractor as needed, generally by files attached to E-mail. These updates will generally consist of submittal reviews, correspondence status, QA comments, and other administrative and QA data.

1.24.6 DATABASE MAINTENANCE

The Contractor shall establish, maintain, and update data for the contract in the QCS database throughout the duration of the contract. The Contractor shall establish and maintain the QCS database at the Contractor's site office. Data updates to the Government shall be submitted by E-mail with file attachments, e.g., daily reports, schedule updates, payment requests. If permitted by the Contracting Officer, a data compact disk (CD) may be used instead of E-mail (see Paragraph DATA SUBMISSION

VIA COMPACT DISK (CD). The QCS database typically shall include current data on the following items:

- Administration
- Contractor Information

The database shall contain the Contractor's name, address, telephone numbers, management staff, and other required items. Within fourteen (14) calendar days of receipt of QCS software from the Government, the Contractor shall deliver Contractor administrative data in electronic format via E-mail.

- Subcontractor Information

The database shall contain the name, trade, address, phone numbers, and other required information for all subcontractors. A subcontractor must be listed separately for each trade to be performed. Each subcontractor/trade shall be assigned a unique Responsibility Code, provided in QCS. Within fourteen (14) calendar days of receipt of QCS software from the Government, the Contractor shall deliver subcontractor administrative data in electronic format via E-mail.

- Correspondence

All Contractor correspondence to the Government shall be identified with a serial number. Correspondence initiated by the Contractor's site office shall be prefixed with "S". Letters initiated by the Contractor's home (main) office shall be prefixed with "H". Letters shall be numbered starting from 0001. (e.g., H-0001 or S-0001). The Government's letters to the Contractor will be prefixed with "C".

- Equipment

The Contractor's QCS database shall contain a current list of equipment planned for use or being used on the jobsite, including the most recent and planned equipment inspection dates.

- Management Reporting

QCS includes a number of reports that Contractor management can use to track the status of the project. The value of these reports is reflective of the quality of the data input, and is maintained in the various sections of QCS. Among these reports are: Progress Payment Request worksheet, QA/QC comments, Submittal Register Status, Three-Phase Inspection checklists.

- Finances
- Pay Activity Data

The QCS database shall include a list of pay activities that the Contractor shall develop in conjunction with the construction schedule. The sum of all pay activities shall be equal to the total contract amount, including modifications. Pay activities shall be grouped by Contract Line Item Number (CLIN), and the sum of the activities shall equal the amount of each CLIN. The total of all CLINs equals the Contract Amount.

- Payment Requests

All progress payment requests shall be prepared using QCS. The Contractor shall complete the payment request worksheet and include it with the payment request. The work completed under the contract, measured as percent or as specific quantities, shall be updated at least monthly. After the update, the Contractor shall generate a payment request report using QCS. The Contractor shall submit the payment requests with supporting data by E-mail with file attachment(s). If permitted by the Contracting Officer, a data diskette may be used instead of E-mail. A signed paper copy of the approved payment request is also required, which shall govern in the event of discrepancy with the electronic version.

- Quality Control (QC)

QCS provides a means to track implementation of the 3-phase QC Control System, prepare daily reports, identify and track deficiencies, document progress of work, and support other Contractor QC requirements. The Contractor shall maintain this data on a daily basis.

Entered data will automatically output to the QCS generated daily report. The Contractor shall provide the Government a Contract level Contractor Quality Control (CQC) Plan within 20 days of the first task order award date. Project specific CQC plans must be provided under individual task orders to include personnel qualification, authorities granted, and any variations to the contract level CQC plan for that project. Within seven calendar days of Government acceptance, the Contractor shall submit a compact disk (CD) reflecting the information contained in the accepted

CQC Plan: schedule, pay activities, features of work, submittal register, QC requirements, and equipment list.

- Daily Contractor Quality Control (CQC) Reports.

QCS includes the means to produce the Daily CQC Report. The Contractor may use other formats to record basic QC data. However, the Daily CQC Report generated by QCS shall be the Contractor's official report. Data from any supplemental reports by the Contractor shall be summarized and consolidated onto the QCS-generated Daily CQC

Report. Reports shall be submitted electronically to the Government using E-mail or compact disc within twenty-four (24) hours after the date covered by the report. Use of either mode of submittal shall be coordinated with the Government representative. The Contractor shall also provide the Government a signed, printed copy of the daily CQC report.

- Deficiency Tracking.

The Contractor shall use QCS to track deficiencies. Deficiencies identified by the Contractor will be numerically tracked using QC punch list items. The Contractor shall maintain a current log of its QC punch list items in the QCS database. The Government will log the deficiencies it has identified using its QA punch list items. The Government's QA punch list items will be included in its export file to the Contractor.

The Contractor shall regularly update the correction status of both QC and QA punch list items.

- Three-Phase Control Meetings

The Contractor shall maintain scheduled and actual dates and times of preparatory and initial control meetings in QCS.

- Accident/Safety Tracking.

The Government will issue safety comments, directions, or guidance whenever safety deficiencies are observed by the Government. The Government's safety comments will be included in its export file to the Contractor. The Contractor shall regularly update the correction status of the safety comments. In addition, the Contractor shall utilize QCS to advise the Government of any accidents occurring on the jobsite. This brief supplemental entry is not to be considered as a substitute for completion of mandatory investigations or submittal of report forms, e.g., ENG Form 3394 and OSHA Form 300 log. The contractor shall use QCS or other acceptable means, acceptable to the Contracting Officer, to report the onsite Exposure Hours (work hours). This report shall be submitted by the 10th of the month for the previous month.

- Features of Work

The Contractor shall include a complete list of the design and construction features of work in the QCS database. A feature of work may be associated with multiple pay activities. However, each pay activity (see subparagraph "Pay Activity Data" of paragraph "Finances") will only be linked to a single feature of work.

- QC Requirements

The Contractor shall develop and maintain a complete list of QC testing, transferred and installed property, and user training requirements in QCS. The Contractor shall update all data on these QC requirements as work progresses, and shall promptly provide this information to the Government via QCS.

- Submittal Management

The Government will provide the initial submittal register, for Government-prepared specifications in electronic format.

- Import/Export of Data

QCS includes the ability to export Contractor data to the Government and to import submittal register and other Government-provided data, and schedule data using SDEF.

1.24.7 IMPLEMENTATION

Contractor use of QCS as described in the preceding paragraphs is mandatory. The Contractor shall ensure that sufficient resources are available to maintain its QCS database, and to provide the

Government with regular database updates. QCS shall be an integral part of the Contractor's management of quality control.

1.24.8 DATA SUBMISSION VIA COMPACT DISK (CD)

The Government-preferred method for Contractor's submission of updates, payment requests, correspondence and other data is by E-mail with file attachment(s). For proposal, Contractors can submit all files as a single zipped file using WinZip version 6.2 or later, or as separate uploads in their native format, i.e., doc, xls, ppt, etc. Files shall be in read-only format, using PDF files. For locations where this is not feasible, the Contracting Officer may permit use of compact disks (CD) for data transfer. Data on the CDs shall be exported using the QCS built-in export function. If used, CDs will be submitted in accordance with the following:

- File Medium

The Contractor shall submit required data on compact disks (CD), capable of running under Microsoft Windows 2007 or newer. They shall conform to industry standards used in the United States. All data shall be provided in English.

- Compact Disk (CD) Labels

The Contractor shall affix a permanent exterior label to each CD submitted. The label shall indicate in English, the QCS file name, full contract number, contract name, project location, data date, name and telephone number of person responsible for the data.

- File Names

The Government will provide the file names to be used by the Contractor with the QCS software.

1.24.9 MONTHLY COORDINATION MEETING

The Contractor shall update the QCS database each workday. At least monthly, the Contractor shall generate and submit an export file to the Government with schedule update and progress payment request. As required in Contract Clause "Payments", at least one week prior to submittal, the Contractor shall meet with the Government representative to review the planned progress payment data submission for errors and omissions. The Contractor shall make all required corrections prior to Government acceptance of the export file and progress payment request. Payment requests accompanied by incomplete or incorrect data submittals will be returned. The Government will not process progress payments until an acceptable QCS export file is received.

1.24.10 NOTIFICATION OF NONCOMPLIANCE

The Contracting Officer will notify the Contractor of any detected noncompliance with the requirements of this specification. The Contractor shall take immediate corrective action after receipt of such notice. Such notice, when delivered to the Contractor at the work site, shall be deemed sufficient for the purpose of notification.

1.25 SUBMITTALS:

1.25.1 REQUIRED SUBMITTALS:

As required per Task Order, Government approval is required for submittals with a "G" designation; all other submittals are for information only. The following shall be submitted in accordance with this Part and in compliance with as will be specified under each Task Order:

SD-01 DataField Office/Storage Plan; G AR

Plan describing location and layout of Contractors temporary facilities, including narrative and drawings.

Site Safety and Health Officer

A Site Safety and Health Officer shall be responsible for overall supervision of accident prevention activities.

Accident Prevention Plan; G AR

Plan addressing the programs and site-specific procedures for the prevention of accidents for each activity performed in each phase of work written in accordance with Appendix A of EM 385-1-1.

Activity Hazard Analysis Plan, G AR

Addressing of potential hazards and ways to mitigate them for each definable feature of work.

OSHA 300 Log and Exposure Hours

A log shall be reported monthly for injuries and exposure hours.

Contractor Quality Control (CQC) Plan; G AR

Identifies personnel, procedures, control, instructions, test, records, and forms to be used.

Compact Disk (CD); G AR.

Software containing submittal data in electronic format.

SD-03 ProductEquipment Data

An itemized list of serial/model numbers and equipment installed by the Contractor under this contract.

SD-O7 SchedulesProgress Schedule; G AR.

A schedule that shows the manner in which the Contractor intends to prosecute the work.

Submittal Register; G AR.

A document defining minimum submittals to be furnished to the Contracting Officer ENG FORM 4288.

Traffic Control Plan; G AR

Plan indicating street closings, detours, signs, barricades or other devices necessary for completion of the work.

Risk Assessment; G AR

Risk Assessment submitted by the Contractor and signed by the Corps of Engineer's Area Engineer before excavating.

SD-09 ReportsOutline Report; G AR.

A report for each past activities review.

SD-10 Operation and Maintenance DataO and M Data

A list of proposed maintenance and instruction manuals that is mainly used for but not limited customized equipment.

SD-18 RecordsTitle Evidence

Proof of purchase for equipment and/or materials.

Photographs

Photographic Record of construction progress (as required by Task Order).

Warranty; G AR

Manufacturer warranty documents complete and signed for specific items, extended warranty if requested in the Scope of Work. And, Contractors warranty for all work completed from date of Beneficial Occupancy Date (BOD).

1.25.2 SUBMITTAL

CLASSIFICATION: Submittals are classified as follows:

1.25.2.1 Government Approval

Governmental approval is required for extensions of design, critical materials, deviations, equipment whose compatibility with the entire system must be checked, and other items as designated by the Contracting Officer. Within the terms of the Contract Clause, FAR 52.236-21, entitled "Specification and Drawings for Construction," they are considered to be "shop drawings." AR represents the level of review as being at the Area Office Level. Items without the AR designation must be submitted to District Office personnel for review.

1.25.2.2 Information Only

All submittals not requiring Government approval will be for information only. They are not considered to be "shop drawings" within the terms of the Contract Clause referenced above.

1.25.3 APPROVED SUBMITTALS:

The approval of submittals by the Contracting Officer shall not be construed as a complete check, but will indicate only that the general method of construction, materials, detailed and other information are satisfactory. Approval will not relieve the Contractor of the responsibility for any error that may exist, as the Contractor under the CQC requirements of this contract, is responsible for the dimensions and design of adequate connections, details, satisfactory construction and safety of all work and personnel. After submittals have been approved by the Contracting Officer, no re-submittal for the purpose of substituting materials or equipment will be given consideration unless accompanied by an explanation as to why a substitution is necessary.

1.25.4 DISAPPROVED SUBMITTALS

The Contractor shall make all corrections required by the Contracting Officer and promptly furnish a corrected submittal in the form and number of copies as specified for the initial submittal. If the Contractor considers any correction indicated on the submittals to constitute a change to the contract, notice as required under Contract Clause entitled "Changes" shall be given promptly to the Contracting Officer.

1.25.5 SUBMITTALS GENERAL

The Contractor shall submit all items listed on the Submittal Register or specified in the other sections of these specifications. The Contracting Officer may request submittals in addition to those listed when deemed necessary to adequately describe the work covered in the respective sections. Submittals shall be made in the respective number of copies and submitted to the Contracting Officer. Each submittal shall be complete and in sufficient detail to allow ready determination of compliance with contract requirements. Prior to submittal, all items shall be checked and approved by the Contractor and each respective transmittal form (ENG Form 4025) shall be stamped, signed and dated by the Contractor certifying that the accompanying submittal complies with the contract requirements. Proposed deviations from the contract requirements shall be clearly identified. Submittals requiring Government approval shall be scheduled and made prior to the acquisition of the material or equipment covered thereby.

1.25.6. SUBMITTAL REGISTER

Section 1.25.1 lists items of equipment and materials for which submittals are required by the specifications; this list may not be all inclusive and additional submittals may be required. Columns "d" through "r" (abbreviations in column "p" are defined as follows: "AR" means Area Office; and "ED" means Engineering Division, WA means Washington Aqueduct) have been completed by the Government. The Contractor shall complete columns "a", "b", "c" and "s" through "aa" and return two (2) completed copies (hard copy plus associated electronic file) to the Contracting Officer's Representative for approval within thirty (30) calendar days after Notice to Proceed. The Contractor shall keep this data up to date and shall submit it to the Government together with the monthly payment request. The approved submittal register will become the scheduling document and will be used to control submittals throughout the life of the contract. This register and the progress schedules shall be coordinated.

1.25.7. SCHEDULING

Submittals covering component items forming a system or items that are interrelated shall be scheduled to be coordinated and submitted concurrently. Certifications to be submitted with the pertinent drawings shall be so scheduled. Adequate time (a minimum of thirty (30) calendar days exclusive of mailing time) shall be allowed on the register for review and approval. No delays, damages or time extensions will be allowed for time lost in late submittals.

1.25.8 SUBMITTAL PROCEDURES

1.25.8.1. Six (6) copies of submittals shall be made as follows:

1.25.8.2 Procedures

In the signature block provided on ENG Form 4025 the Contractor certifies that each item has been reviewed in detail and is correct and is in strict conformance with the contract drawings and specifications unless noted otherwise. The accuracy and completeness of submittals is the responsibility of the Contractor. Any costs due to re-submittal of documents caused by inaccuracy, lack of coordination, and/or checking shall be the responsibility of the Contractor. This shall include the handling and review time on the part of the Government. Each variation from the contract specifications and drawings shall be noted on the form; and, attached to the form; the Contractor shall set forth, in writing, the reason for and description of such variations. If these requirements are not met, the submittal may be returned for corrective action.

1.25.8.3 Additional Requirements

The above is in addition to the requirements set forth in Contract Clause entitled "Specifications and Drawings for Construction". (ER 415-1-10)

1.25.8.4. Deviations

For submittals which include proposed deviations requested by the Contractor, the column "variations" of ENG Form 4025 shall be checked. The Contractor shall set forth in writing the reason for any deviations and annotate such deviations on the submittal. The government reserves the right to rescind inadvertent approval of submittals containing unnoted deviations.

1.25.9. GOVERNMENT APPROVED SUBMITTALS

Upon completion of review of submittals requiring Government approval, the submittals will be identified as having received approval by being stamped and dated. Four (4) copies of the submittal will be retained by the Contracting Officer and two (2) copies of the submittal will be returned to the Contractor.

1.25.10 INFORMATION ONLY SUBMITTALS

Normally submittals for information only will be returned. Approval of the Contracting Officer is not required on information only submittals. These submittals will be used for information purposes. The government reserves the right to require the Contractor to resubmit any item found not to comply with the contract.

1.25.11 STAMPS

1.25.11.1 Stamps used by the Contractor on the submittal data to certify that the submittal meets contract requirements shall be similar to the following:

(Firm Name) _____Approved _____Approved with corrections as noted on submittal data and/or attached sheet(s). SIGNATURE: _____ TITLE: _____

1.26 ENVIRONMENTAL PROTECTION:

1.26.1 APPLICABLE REGULATIONS

1.26.1.1 The Contractor and his subcontractors in the performance of this contract, shall comply with all applicable Federal, State, and local laws and regulations concerning environmental pollution control and abatement in effect on the date of this solicitation, as well as the specific requirements stated elsewhere in the contract specifications.

1.26.1.2 Trucks leaving the site with loose debris shall be loaded in a manner that will prevent dropping of materials on the streets. Fasten suitable tarpaulins over the load before they enter surrounding streets. Comply with all regulations when handling hazardous materials.

1.26.2 NOTIFICATION

The Contracting Officer will notify the Contractor of any non-compliance with the foregoing provisions and the action to be taken. The Contractor shall, after receipt of such notice, immediately take corrective action. If the Contractor fails or refuses to comply promptly, the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. No part of time lost due to any such stop order shall be made the subject of a claim for extension of time or for excess costs or damages by the Contractor unless it is later determined that the Contractor was in compliance.

1.26.3 PROTECTION OF WATER RESOURCES

The Contractor shall not pollute streams, lakes or reservoirs with fuels, oils, bitumens, calcium chloride, acid construction wastes or other harmful materials. It is the responsibility of the Contractor to investigate and comply with all applicable Federal, State, County and Municipal laws concerning pollution of rivers and streams. All work under this contract shall be performed in such a manner that objectionable conditions will not be created in streams through or adjacent to the project areas.

1.26.4 BURNING

Burning will not be permitted

1.26.5 DUST CONTROL

The Contractor shall maintain all work area free from dust which would contribute to air pollution. Approved temporary methods of stabilization methods will be permitted to control dust. Dust control shall be performed as the work proceeds and whenever a dust nuisance or hazard occurs.

1.26.6 ENVIROMENTAL CONTROL REQUIREMENTS:

The Contractor is responsible to comply with Erosion and Sediment Control provisions detailed on the contract drawings and all requirements of the State in which the work is performed including obtaining the required permits.

1.27 TEMPORARY CONSTRUCTION ITEMS:

1.27.1 GENERAL

The work covered by this section consists of furnishing all labor, materials, equipment, and services and performing all work required for or incidental to the items herein specified. No separate payment will be made for the construction and services required by this section, and all costs in connection therewith shall be included in the overall cost of the work unless specifically stated otherwise.

1.27.2 EMPLOYEE PARKING

Contractor employees shall park privately owned vehicles in areas designated by the Contracting Officer.

Contractor employee parking shall not interfere with existing and established parking requirements of the military installation.

1.27.3 CONTRACTOR'S STORAGE AREAS AND FIELD OFFICE**1.27.3.1 Administrative Field Offices**

The Contractor shall provide and maintain field office facilities as directed by the Contracting Officer. Contractor shall furnish to the Contracting Officer for approval a plan, including both drawings and narrative, showing the proposed layout of the field office, and all storage areas. The plan shall be approved before field office or storage areas are constructed. Government facilities will not be available to the Contractors personnel.

1.27.3.2 Storage Area

The Contracting Officer will designate an outdoor materials/equipment storage location. Contractor shall furnish to the Contracting Officer for approval a plan, including both drawings and narrative, showing the proposed layout of all storage areas. The plan shall be approved before field office or storage areas are constructed. Security for each area shall be sufficient to safeguard materials and equipment. The Government is not responsible for stolen or damaged materials or equipment.

1.27.4 STREET CLOSINGS

1.27.4.1 When operations in connection with contract work necessitate the closing of streets, it shall be the Contractor's responsibility to arrange in advance with the Contracting Officer for such street closings and to provide appropriate barricades, signs, markers, flares and other devices as may be required by the Contracting Officer's Representative for Traffic guides and public safety.

1.27.4.2 A minimum of seventeen (17) days prior to an anticipated street closing for work on or near the work site, the Contractor shall provide a Traffic Control Plan indicating signage, barricades, flagmen, method(s) to be used for maintaining traffic, etc. to the Contracting Officer for approval.

1.27.5 ORDER OF WORK AND COORDINATION WITH OTHER CONTRACTORS:

Other Contractors may be working the same area. Construction area will be shared from time to time with other Contractors and other project construction activities.

1.27.6 PROJECT AND SAFETY SIGN:

A Project and Safety sign shall be provided, as required per Task Order, and erected at a location designated by the Contracting Officer. The sign shall conform to the applicable requirements of EP 310-1- 6A and EP 310-1-6B, or as directed by the Contracting Officer. The sign shall be erected as soon as possible and within 15 days of the notice to proceed. Upon completion of the project, the sign shall be removed and disposed of by the Contractor.

1.28 REAL PROPERTY EQUIPMENT DATA: (APR 1975)

At or before the time of completion of the contract, the Contractor shall submit to the Contracting Officer a complete itemized list, including serial and model number where applicable, showing the unit retail value of each Contractor furnished item of mechanical, electrical and plumbing equipment installed by the Contractor under this contract. For each of the items which is specified herein to be guaranteed for a specified period from the date of acceptance thereof, either for beneficial use or final acceptance, whichever is earlier, against defective materials, design, and workmanship, the following information shall be given: the name, address and telephone number of the subcontractor, Equipment Supplier, or Manufacturer originating the guaranteed item. The list shall be accompanied by a copy of the specific guarantee if one had been furnished to the Contractor

by the Equipment Supplier or Manufacturer. The Contractor's guarantee to the Government of these items will not be limited by the terms of any manufacturer's guarantee to the Contractor. Baltimore District NADB Form 1019 may be utilized for the itemized listing and will be made available to the Contractor upon request.

1.29 TOILET FACILITIES

In instances where Government-provided toilets are not available, the Contractor will be required to provide and maintain temporary toilet facilities for Contractor's personnel at no expense to the Government.

1.30 O and M DATA: (JUL 1979)

The requirements for furnishing operating and maintenance data and field instruction are specified elsewhere in the specification. The Contractor shall submit to the Contracting Officer, at a time prior to the 50% project completion time, a list of proposed maintenance and instruction manuals to be furnished to the Government and the scheduled dates of all required field instructions to be provided by Contractor furnished personnel or manufacturer's representative. All maintenance and instruction manuals must be furnished to the Contracting Officer at least two (2) weeks prior to the scheduled dates of any required Contractor furnished field instructions or at least one month prior to project completion if no Contractor furnished field instructions are required.

1.31 RECORD DRAWINGS:

1.31.1 During the progress of the job, the Contractor shall keep a careful record at job site of all changes and corrections for the layouts shown on the drawings, if applicable. The Contractor shall enter such changes and corrections on contact or record drawings promptly. The record drawing shall indicate, in addition to all changes and corrections, the actual location of all sub-surface utility items.

1.31.2 In order that the location of these lines and appurtenances may be determined in the event the surface openings or indicators become covered over or obscured, the record drawings shall show, by offset dimensions to two permanently fixed surface features, the end of each run including change in direction. Valve, splice boxes and similar appurtenances shall be located by dimensioning along the utility run from a referenced point. The average depth below the surface of each run shall be recorded.

1.31.3 At the time of beneficial occupancy of each structure or facility involved under the contract, the Contractor shall submit to the Contracting Officer as-built prints and electronic files showing the aforementioned data. If the Contractor fails to maintain the record drawings as required herein, the Contracting Officer will consider that satisfactory progress has not been achieved for the period in question, thereby requiring the retainage of 10% of any progress payments to be made until such drawings are made current. Additionally, the estimate cost of maintaining the record drawing will be deducted from any such progress payment. If the Government provides initial drawings on paper, then paper as-builts may be submitted. If the Government provides initial drawings on CADD, then the as-builts shall be provided in the CADD format that is compatible with the installation.

1.32 HOT-WORK PERMIT:

A hot-work permit must be obtained before using heat-producing equipment. A Fire Department Pre-Construction Conference hot work permit form will be provided to the Contractor at the Project Pre-Construction Conference, which also includes a requirement to provide a signature acknowledging receipt of briefing.

1.33 WARRANTY OF CONSTRUCTION:

The Contractor shall warranty all materials and workmanship in accordance with Contract Clause (FAR 52.246-21), "WARRANTY OF CONSTRUCTION".

1.34 MANUFACTURER'S WARRANTY:

The Contractor shall provide manufacturer's warranties, when available, on all equipment for one year starting from the day of facility acceptance by the Government. Any warranty offered by the manufacturer for periods greater than one year or required by other sections of the specifications shall also be provided.

SECTION 00 73 00 - SUPPLEMENTARY CONDITIONS

The following have been modified:

WAGE DETERMINATION

"General Decision Number: DC20250002 06/13/2025

Superseded General Decision Number: DC20240002

State: District of Columbia

Construction Type: Building

County: District of Columbia Statewide.

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Note: Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658. Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5.1(a)(1).

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022:	. Executive Order 14026 generally applies to the contract. . The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.
If the contract was awarded on	. Executive Order 13658

or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022:	generally applies to the contract. The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on that contract in 2025.
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The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a conformance request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at <http://www.dol.gov/whd/govcontracts>.

Modification Number	Publication Date
0	01/03/2025
1	01/10/2025
2	01/24/2025
3	02/14/2025
4	02/21/2025
5	05/30/2025
6	06/13/2025

ASBE0024-007 10/01/2024

	Rates	Fringes
ASBESTOS WORKER/HEAT & FROST INSULATOR.....	\$ 40.77	20.17+a

Includes the application of all insulating materials, protective coverings, coatings and finishes to all types of mechanical systems

a. PAID HOLIDAYS: New Year's Day, Martin Luther King Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, the day after Thanksgiving and Christmas Day provided the employee works the regular work day before and after the paid holiday.

ASBE0024-008 10/01/2024

Rates	Fringes
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ASBESTOS WORKER: HAZARDOUS

MATERIAL HANDLER.....\$ 24.46 10.19+a

Includes preparation, wetting, stripping, removal, scrapping, vacuuming, bagging and disposing of all insulation materials, whether they contain asbestos or not, from mechanical systems

a. PAID HOLIDAYS: New Year's Day, Martin Luther King Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, the day after Thanksgiving and Christmas Day provided the employee works the regular work day before and after the paid holiday.

ASBE0024-014 10/01/2024

	Rates	Fringes
FIRESTOPPER.....	\$ 30.21	10.43+a

Includes the application of materials or devices within or around penetrations and openings in all rated wall or floor assemblies, in order to prevent the passage of fire, smoke of other gases. The application includes all components involved in creating the rated barrier at perimeter slab edges and exterior cavities, the head of gypsum board or concrete walls, joints between rated wall or floor components, sealing of penetrating items and blank openings.

a. PAID HOLIDAYS: New Year's Day, Martin Luther King Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, the day after Thanksgiving and Christmas Day provided the employee works the regular work day before and after the paid holiday.

BRDC0001-002 04/27/2025

	Rates	Fringes
BRICKLAYER.....	\$ 38.80	15.17

CARP0197-011 05/01/2024

	Rates	Fringes
CARPENTER, Includes Drywall Hanging, Form Work, and Soft Floor Laying-Carpet.....	\$ 34.41	14.33

* CARP0219-001 05/01/2025

	Rates	Fringes
MILLWRIGHT.....	\$ 39.50	17.32

CARP0474-006 05/01/2024		

	Rates	Fringes
PILEDRIVERMAN.....	\$ 36.60	14.47

ELEC0026-016 06/05/2023		

	Rates	Fringes
ELECTRICIAN, Includes Installation of HVAC/Temperature Controls.....	\$ 53.00	21.35

ELEC0026-017 09/02/2024		

	Rates	Fringes
ELECTRICAL INSTALLER (Sound & Communication Systems).....	\$ 32.60	12.92

SCOPE OF WORK: Includes low voltage construction, installation, maintenance and removal of teledata facilities (voice, data and video) including outside plant, telephone and data inside wire, interconnect, terminal equipment, central offices, PABX, fiber optic cable and equipment, railroad communications, micro waves, VSAT, bypass, CATV, WAN (Wide area networks), LAN (Local area networks) and ISDN (Integrated systems digital network).

WORK EXCLUDED: The installation of computer systems in industrial applications such as assembly lines, robotics and computer controller manufacturing systems. The installation of conduit and/or raceways shall be installed by Inside Wiremen. On sites where there is no Inside Wireman employed, the Teledata Technician may install raceway or conduit not greater than 10 feet. Fire alarm work is excluded on all new construction sites or wherever the fire alarm system is installed in conduit. All HVAC control work.

ELEV0010-001 01/01/2025

	Rates	Fringes
ELEVATOR MECHANIC.....	\$ 57.16	38.435+a+b

a. PAID HOLIDAYS: New Year's Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, Christmas

Day and the Friday after Thanksgiving.

b. VACATIONS: Employer contributes 8% of basic hourly rate for 5 years or more of service; 6% of basic hourly rate for 6 months to 5 years of service as vacation pay credit.

IRON0005-005 06/01/2024

	Rates	Fringes
IRONWORKER, STRUCTURAL AND ORNAMENTAL.....	\$ 37.86	25.86

IRON0005-012 05/01/2024

	Rates	Fringes
IRONWORKER, REINFORCING.....	\$ 31.88	23.78

LABO0011-009 06/01/2024

	Rates	Fringes
LABORER: Skilled.....	\$ 29.66	8.29

FOOTNOTE: Potmen, power tool operator, small machine operator, signalmen, laser beam operator, waterproofer (excluding roofing), open caisson, test pit, underpinning, pier hole and ditches, ladders and all work associated with lagging that is not expressly stated, strippers, operator of hand derricks, vibrator operators, pipe layers, or tile layers, operators of jackhammers, paving breakers, spaders or any machine that does the same general type of work, carpenter tenders, scaffold builders, operators of towmasters, scootcretes, buggymobiles and other machines of similar character, operators of tampers and rammers and other machines that do the same general type of work, whether powered by air, electric or gasoline, builders of trestle scaffolds over one tier high and sand blasters, power and chain saw operators used in clearing, installers of well points, wagon drill operators, acetylene burners and licensed powdermen, stake jumper, demolition.

MARB0002-004 04/27/2025

	Rates	Fringes
MARBLE/STONE MASON.....	\$ 45.65	21.21

INCLUDING pointing, caulking and cleaning of All types of masonry, brick, stone and cement EXCEPT pointing, caulking, cleaning of existing masonry, brick, stone and cement

(restoration work)

MARB0003-006 04/27/2025		
	Rates	Fringes
TERRAZZO WORKER/SETTER.....	\$ 34.34	14.20

MARB0003-007 04/27/2025		
	Rates	Fringes
TERRAZZO FINISHER.....	\$ 28.85	12.55

MARB0003-008 04/27/2025		
	Rates	Fringes
TILE SETTER.....	\$ 34.34	14.20

MARB0003-009 04/27/2025		
	Rates	Fringes
TILE FINISHER.....	\$ 28.85	12.55

PAIN0051-014 06/01/2023		
	Rates	Fringes
GLAZIER		
Glazing Contracts \$2 million and under.....	\$ 30.52	13.85
Glazing Contracts over \$2 million.....	\$ 34.76	13.85

PAIN0051-015 06/01/2023		
	Rates	Fringes
PAINTER		
Brush, Roller, Spray and Drywall Finisher.....	\$ 27.46	11.56

PLAS0891-005 07/01/2023		
	Rates	Fringes
PLASTERER (Including Fireproofing).....	\$ 31.83	8.96

PLAS0891-006 02/01/2024		

	Rates	Fringes
CEMENT MASON/CONCRETE FINISHER...	\$ 30.25	13.60

 PLUM0005-010 08/01/2024

	Rates	Fringes
PLUMBER.....	\$ 51.25	22.46+a

a. PAID HOLIDAYS: Labor Day, Veterans' Day, Thanksgiving Day and the day after Thanksgiving, Christmas Day, New Year's Day, Martin Luther King's Birthday, Memorial Day and the Fourth of July.

 PLUM0602-008 08/01/2024

	Rates	Fringes
PIPEFITTER, Includes HVAC Pipe Installation.....	\$ 52.27	23.79+a

a. PAID HOLIDAYS: New Year's Day, Martin Luther King's Birthday, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day and the day after Thanksgiving and Christmas Day.

 ROOF0030-016 07/01/2024

	Rates	Fringes
ROOFER.....	\$ 34.76	14.91

 SFDC0669-002 01/01/2025

	Rates	Fringes
SPRINKLER FITTER (Fire Sprinklers).....	\$ 42.32	26.39

 SHEE0100-015 11/01/2023

	Rates	Fringes
SHEET METAL WORKER (Including HVAC Duct Installation).....	\$ 47.92	22.72+a

a. PAID HOLIDAYS: New Year's Day, Martin Luther King's Birthday, Memorial Day, Independence Day, Labor Day, Veterans Day, Thanksgiving Day and Christmas Day

* SUDC2009-003 05/19/2009

	Rates	Fringes
LABORER: Common or General.....	\$ 13.04 **	2.80
LABORER: Mason Tender - Cement/Concrete.....	\$ 15.40 **	2.85

LABORER: Mason Tender for
pointing, caulking, cleaning
of existing masonry, brick,
stone and cement structures
(restoration work); excludes
pointing, caulking and
cleaning of new or
replacement masonry, brick,
stone and cement.....\$ 11.67 **

POINTER, CAULKER, CLEANER,
Includes pointing, caulking,
cleaning of existing masonry,
brick, stone and cement
structures (restoration
work); excludes pointing,
caulking, cleaning of new or
replacement
masonry, brick, stone or
cement.....\$ 18.88

WELDERS - Receive rate prescribed for craft performing
operation to which welding is incidental.

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** Workers in this classification may be entitled to a higher
minimum wage under Executive Order 14026 (\$17.75) or 13658
(\$13.30). Please see the Note at the top of the wage
determination for more information. Please also note that the
minimum wage requirements of Executive Order 14026 are not
currently being enforced as to any contract or subcontract to
which the states of Texas, Louisiana, or Mississippi, including
their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave
for Federal Contractors applies to all contracts subject to the
Davis-Bacon Act for which the contract is awarded (and any
solicitation was issued) on or after January 1, 2017. If this
contract is covered by the EO, the contractor must provide
employees with 1 hour of paid sick leave for every 30 hours
they work, up to 56 hours of paid sick leave each year.
Employees must be permitted to use paid sick leave for their
own illness, injury or other health-related needs, including

preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio.

The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

a) a survey underlying a wage determination

- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION"

(End of Summary of Changes)